

25SMCV02901 25SMCV02901

County: los-angeles

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Case Number: 25SMCV02901 Hearing Date: September 17, 2026 Dept: P

Tentative

Ruling

Jane

Doe v. Regents of the University of California, Case No. 25SMCV02901

Defendant's

Motion to Strike

Hearing

Date: September 17, 2026

Background

Plaintiff

Jane Doe ("Doe") sues The Regents of the University of California ("The Regents") and Does 2-25 for negligence and negligent hiring, retention, and supervision arising out of an alleged sexual assault in 2023 when she was approximately three years old. (First Amended Complaint ("FAC"), ¶ 33) Doe alleges that Christopher Rodriguez, a teacher at the University of California Los Angeles Early Care and Education Krieger Center, sexually abused and assaulted her multiple times over a period of several months while she was a student. (Id. at ¶ 33.)

On June 6,

2025, Doe filed the initial complaint.

On August

20, 2025, the Court granted Doe's ex parte applications to seal, to appoint a guardian ad litem, and to proceed under fictitious names.

On

December 10, 2025, The Regents filed a motion to strike.

On

February 20, 2026, Doe filed an Amended Complaint, mooting the December 10 motion to strike.

On April

22, 2026, The Regents filed this motion to strike. On September 3, 2026, Doe filed opposition. On September 10, 2026, The Regents filed a reply.

Motion

to Strike

Any party,

within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP, § 435(b)(1); CRC, rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP, § 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].) 〰〰〰〰

"Where the

defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question." (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) 〰〰〰〰

Discussion

The

Regents move to strike Plaintiff's allegations that The Regents covered up abuse as irrelevant, arguing that the allegations only supported a claim for treble damages that Doe has since dismissed. (Motion to Strike, p. 4.) In opposition, Doe argues that the allegations are relevant to The Regents' knowledge of the perpetrator's history of abuse and failure to protect her from his abuse. (Opposition, p. 2.) In reply, The Regents argue that the term "cover up," as used in the complaint is a specific term of art related to treble damages because it references the code section authorizing treble damages and should be stricken as immaterial. (Reply, p. 2.)

The

Regents may be correct that they are immune from treble damages based on an alleged coverup of abuse, but there is no law that The Regents cannot be accused of covering up sexual abuse. Plaintiff's allegation may still be relevant to The Regents' liability, especially to their knowledge of the abuse. Contrary to The Regents' contention, Plaintiff's reference to a code section defining a cover up for the purposes of treble damages does not establish that the allegation is improper, especially since the definition of "cover up" in that context is still relevant to the allegation that The Regents knew about abuse and failed to act. Where, as here, the challenged allegations add context to the plaintiff's claims and are not themselves improper, the Court will not grant a motion to strike. (PH II, Inc. v. Superior Court (1995), 33 Cal.App.4th 1680, 1683 ("[U]se of the motion to strike should be cautious and sparing. We have no intention of creating a procedural 'line-item veto' for the civil defendant.").)

Conclusion

The

Regents' Motion to Strike is DENIED.